

RESOLUTION NO. _____

ENTITLED: **“A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A COUNTY FINAL PLAT FOR HAWK’S LANDING SUBDIVISION, A REPLAT OF A PORTION OF TRACT 8, CAPITOL TRACTS, BEING SITUATED IN A PORTION OF THE NE¼ NW¼, SECTION 18, T13N, R66W, OF THE 6TH PRINCIPAL MERIDIAN, LARAMIE COUNTY, WYOMING (LOCATED WEST OF AND ADJACENT TO YORK AVENUE, SOUTH OF WEST COLLEGE DRIVE).”**

WHEREAS, Sheri and Charles Anderson have subdivided said land in accordance with the statutes in such cases made and provided; and

WHEREAS, Sheri and Charles Anderson, the owners of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, block, easements, and right-of-way; and

WHEREAS, the above described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the governing body; and the plat has been duly executed by the Development Office; and

WHEREAS, the above described subdivision plat is within one (1) mile of the boundaries of the City of Cheyenne, Wyoming, and therefore, governing body approval is required in accordance with W.S. 34-12-103; and

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as Hawk’s Landing Subdivision, Laramie County, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2018.

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

STAFF REPORT - SUMMATION

Hawk's Landing Subdivision County Final Plat Process

CASE NUMBER(s): UDC-18-00067

SUBDIVISION CODE: HWKL 01

PREPARED BY: Seth Lloyd

MEETING DATES:	Planning Commission:	April 2, 2018	
	City Council:	April 9, 2018	1 st Reading
	Public Service Committee:	April 17, 2018	
	City Council:	April 23, 2018	2 nd Reading

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Master Application; Final Plat Map; Conceptual Drainage Analysis; Transportation Worksheet; Environmental Impact Assessment and Open Space narrative
- Photographs verifying fulfillment of the posted notice requirement (UDC 2.1.3.c.2.b.1) – submitted 2/28/2018
- Revised Final Plat Map – submitted 3/29/2018 (submitted in response to consultation with County agencies)

PLANNING COMMISSION RECCOMENDATION: At their regular meeting on April 2, 2018 the Planning Commission recommended approval of the Final Plat (with revised map) by a vote of 4-0, with no conditions.

RECOMMENDATION: Staff recommends approval of the Final Plat.

STAFF REPORT

Hawk's Landing Subdivision County Final Plat Process

CASE NUMBER(s): UDC-18-00067 **SUBDIVISION CODE:** HWKL 01
PREPARED BY: Seth Lloyd
PUBLIC HEARING: April 2, 2018 (Planning Commission)

OWNER(s): Sheri and Charles Anderson (307) 287-4457
1916 York Avenue
Cheyenne, WY 82007

AGENT: AVI, PC (307) 637-6017
Christofer Lovas
1103 Old Town Lane #101
Cheyenne, WY 82009

PROJECT: Hawk's Landing Subdivision County Final Plat

WORK DESCRIPTIONS: A final plat application for a portion of Capitol Tracts, Tract 8, being situated in a portion of the NE $\frac{1}{4}$ NW $\frac{1}{4}$, Section 18, T13N, R66W, of the 6th Principal Meridian, Laramie County, Wyoming.

LOCATION:

1. Legal Description: a replat of a portion of Capitol Tracts, Tract 8 being situated in a portion of the NE $\frac{1}{4}$ NW $\frac{1}{4}$, Section 18, T13N, R66W, of the 6th Principal Meridian, Laramie County, Wyoming.
2. Location: west of and adjacent to York Avenue, south of College Drive
3. Address: 1916 York Avenue

SIZE: 4.25 acres
FUTURE LAND USE DESIGNATION: Urban Residential
CURRENT ZONING: County MR (Medium Density Residential)
PROPOSED ZONING: County MR (Medium Density Residential)
EXISTING LAND USE: Rural Residential
PROPOSED LAND USE: Residential

SURROUNDING LAND USES:

SURROUNDING	LAND USE(s)	ZONING	ANNEXATION STATUS
North	Residential	MR	County
South	Residential	MR	County
East	Residential	MR	County
West	Rural Residential, Residential	MR	County

EXECUTIVE SUMMARY:

This Final Plat proposes dividing a 4.25 acre parcel into 4 lots for residential development. The land is currently developed with one residential unit and associated outbuildings. The existing residential development is anticipated to remain on the proposed Lot 4.

A Preliminary Plat for this land was approved by the City Council on January 22, 2018. The Preliminary Plat proposed two phases, the first phase (this Final Plat) creating Lots 1-3 out of the larger parcel, and the second phase (a later final plat) would create Lots 4-9 as shown on the Preliminary Plat map. The Preliminary Plat indicated drainage improvements would be provided with the first phase.

The submitted Final Plat creates Lots 1-3 out of the larger parcel and provides all drainage easements found in the Preliminary Plat. This Final Plat fulfills 3 of the 4 conditions placed on the Preliminary Plat approval. The condition which remains unfulfilled was to provide 10' of right-of-way to York Avenue. York Avenue acts as an access to the neighborhood and is a narrow right-of-way which should be wider to effectively serve the community. However, as there is limited opportunity to obtain right-of-way from other property owners along York Avenue, the County and the MPO have agreed that requiring right-of-way as part of this platting action is not necessary. Staff recommends removing the additional right-of-way condition, and therefore recommends approval of this Final Plat with no conditions.

Due to meeting the review criteria set forth in Section 2.1.3.d of the Cheyenne Unified Development Code, staff recommends the Planning Commission approve this final plat.

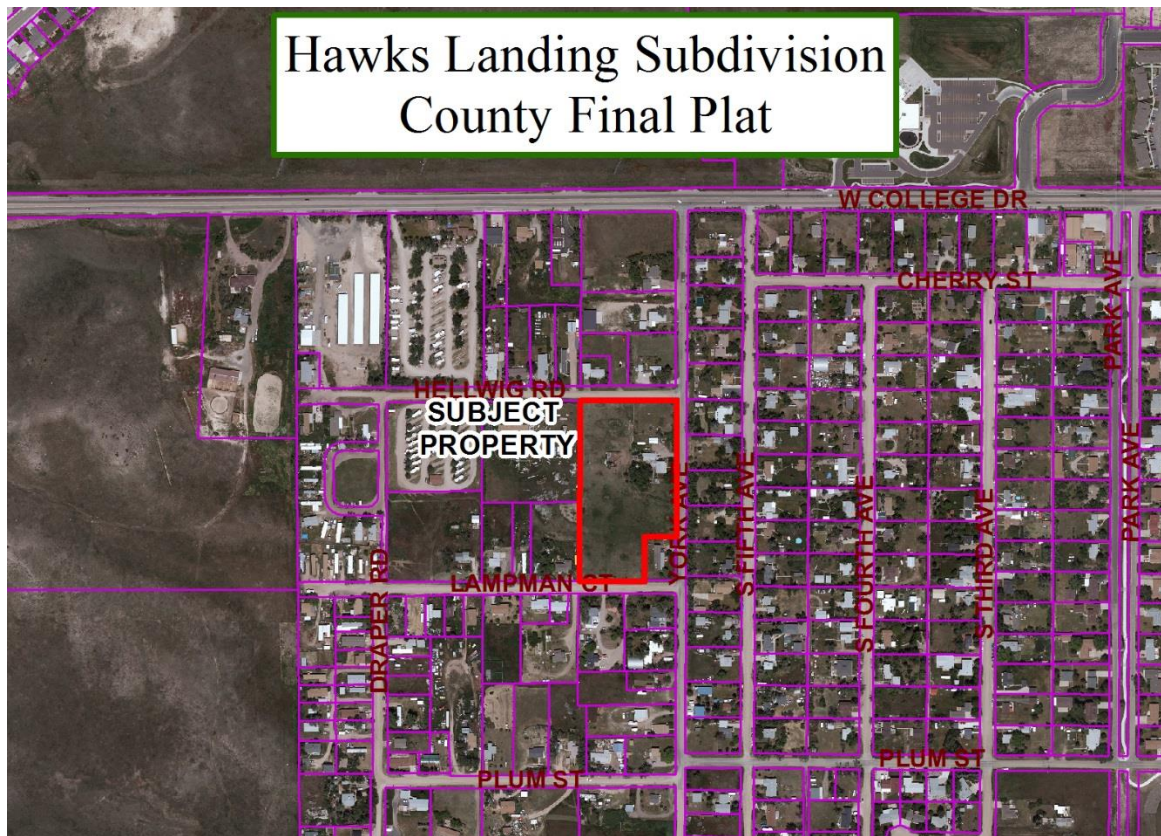
LOCATION/VICINITY MAP:



Map # 1 – Project Location/ Vicinity Map

Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map # 2 - Site aerial highlighting subject property located west of York Avenue, south of College Drive

Source: Cheyenne/Laramie County GIS Cooperative Program

VIEWS OF SUBJECT PROPERTY:



Photograph #1 – Image of the proposed Lot 4 (future Phase 2) of Hawk's Landing Subdivision from the intersection of York Avenue and Hellwig Road, facing south.

Source: Development Office



Photograph #2 – Image of the proposed Lot 3 of Hawk's Landing Subdivision from Lampman Court, facing north.

Source: Development Office

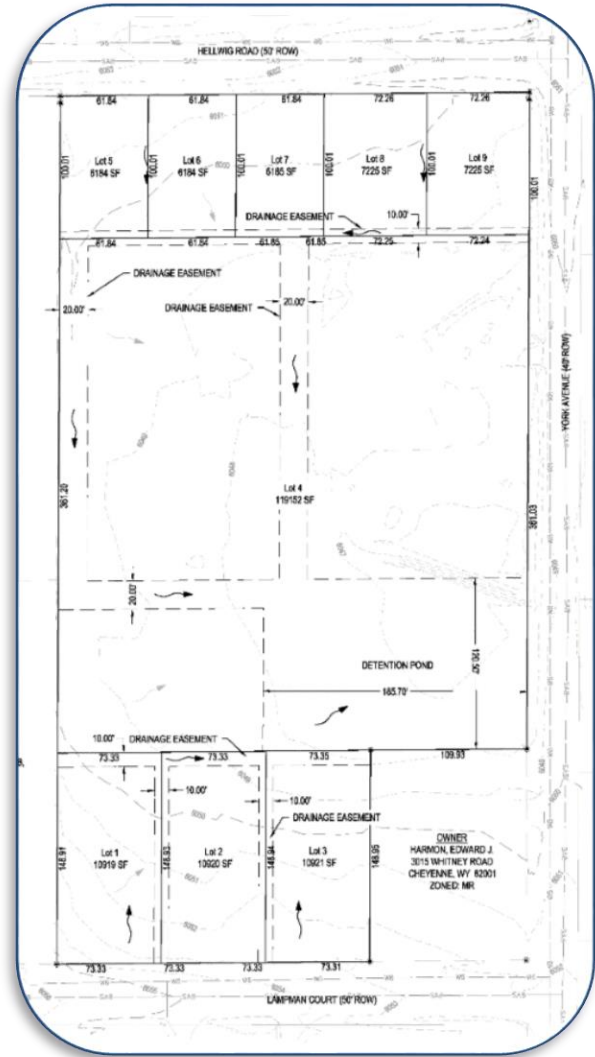
FINAL PLAT DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed final plat, the Staff, Planning Commission and City Council shall use the following 3 criteria, as found in Section 2.1.3.d:

1. CONFORMANCE WITH PRELIMINARY PLAT - *The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan.*

This application is in conformance with approved Preliminary Plat.

The approved Preliminary Plat for Hawk's Landing Subdivision included 9 lots proposed in two phases. The applicant indicated Lots 1-3 (Block 1) would be split off of the larger lot as phase 1, and Lots 5-9 would be split off the larger lot as phase 2. Hawk's Landing Subdivision Final Plat is the first phase of the two-phase development. Lots 1-3 on the proposed Final Plat map match Lots 1-3 on the approved Preliminary Plat map. This Final Plat map does not include Lots 5-9, as they are anticipated on a later phase.

The Final Plat includes all easements depicted on the Preliminary Plat map. The Preliminary Plat did not include any changes to the transportation network.



Map #3 – A portion of the approved Preliminary Plat Map
Source: File for UDC-17-00687

2. CONDITIONS - *The application meets any conditions or modifications of the approved preliminary plat.*

The following conditions were placed on the Preliminary Plat:

1. Remove duplicated dimensional labels.
2. Provide dimensional data for the easements.
3. Provide a block number.
4. Dedicate an extra 10' of right-of-way along York Avenue.

All conditions placed on the Preliminary Plat have been met by this Final Plat, with the exception of condition number 4. On March 26, 2018, in consultation with the County, the applicant submitted a

revised final plat map to the City removing the 10' of right of way requested by condition number 4 on the Preliminary Plat Map. York Avenue acts as an access to the neighborhood and is a narrow right-of-way which should be wider to effectively serve the community. However, as there is limited opportunity to obtain right-of-way from other property owners along York Avenue, the County and the Metropolitan Planning Organization (MPO) have agreed that requiring right-of-way as part of this platting action is not necessary.

As the MPO was the primary organization requesting a widening of York Avenue through the Preliminary Plat process, and as the MPO has agreed with the County that a widening is not necessary as part of this platting action, Staff recommends approval of this Final Plat with revised Plat map and no conditions, despite the Final Plat map not fulfilling condition 4 on the Preliminary Plat approval.

3. SUBDIVISION STANDARDS - *The application meets the purposes, intent, and applicable standards of Article 4.*

Transportation Network:

York Avenue was originally platted north of College Drive as a street with 80' of right-of-way (as part of Interior Heights, 2nd Filing in 1890). Capitol Tracts, platted in 1938, continued the York Avenue right-of-way by dedicating 40' (or half of the right-of-way), south of College Drive. When Capitol Tracts was originally platted, it was likely expected that the neighboring property owner to the east would plat another 40' to continue the 80' wide York Avenue. All other streets in the Capitol Tracts plat are 50' wide.

However, when the property to the east was platted in 1940 (as Orchard Valley) the 40' east half of York Avenue right-of-way was not dedicated, leaving York Avenue at 40' wide, where it remains to this day.

Unfortunately, a 40' wide road is not really an acceptable right-of-way width, especially for a road which acts as access into a neighborhood. To facilitate the transportation of the residents of this neighborhood, the York Avenue travel way should be widened. Widening the right-of-way, providing a public access easement, or other solution could be provided to resolve this issue. As there is limited opportunity to obtain right-of-way from other property owners along York Avenue, the County and the Metropolitan Planning Organization have agreed that requiring right-of-way as part of this platting action is not necessary.

Community Facility Fees:

This land is not within City limits. Plat fees are not required unless this property annexes to the City in the future.

Open Space:

This property is exempt from providing open space during this plat action.

REVIEW

REVIEWING AGENCIES WITH COMMENTS:

- City Surveyor (Jack Studley)
 - o **(FYI)** 1. Boundary data and legal descriptions appear in order.
- Development Department (Seth Lloyd)
 - o **(FYI)** The Final Plat is substantially similar to the approved Preliminary Plat. This Final Plat plats the area indicated through the Preliminary Plat process as phase 1. A second phase is anticipated for the northern lots.
 - o **(FYI)** [The originally submitted] Final Plat map fulfills all the conditions placed on the Preliminary Plat approval.
- Laramie County Environmental Health Department (Roy Kroeger)
 - o **(FYI)** 201 Area Facilities Management Plan - Laramie County Small Wastewater System Regulations:
Any development in this area shall utilize the South Cheyenne Water and Sewer District Services.
- Laramie County School District #1 (Chris Hout)
 - o **(FYI)** Hawks Landing Subdivision -- prelim plat comments: This development falls within the South Triad -- student's home attendance boundaries are South High School, Johnson Junior High School and Rossman Elementary Schools. The current attendance for these schools is as follows:
 - Rossman Elementary - near or at capacity with little to no space available all grades.
 - Johnson Junior High - below capacity with space available in both 7th and 8th grades.
 - South High - below capacity with space available in all grades 9-12.
- Metro Planning Office (Nancy Olson & Tom Mason)
 - o **(FYI)** The MPO added the comment asking for additional right of way on the preliminary plat, because the City and County Master Transportation Plan has York continuing south of Orchard Valley as a collector. However, since the entire road between College and Apple is 40 feet then it is not appropriate at this time to try and get additional right-of-way from this property only. Therefore the MPO is removing this request on the Final Plat.
- Urban Planning (Seth Lloyd)
 - o **(FYI)** 1. PlanCheyenne encourages a mix of housing types within neighborhoods (1.3.b; 2.3.a; Urban Residential section). While this neighborhood lacks traditional diversity of housing types, a variety of low-density residential lot sizes exist, including a mobile home parks. This proposal does not adversely affect the current variety of low-density residential units.
 - o **(FYI)** 2. PlanCheyenne encourages compatible infill development (1.4.a; 1.4.d; 2.1.a; 5.1.b; 7.2.e) This proposal is similar to the surrounding area and will help maximize the use of existing infrastructure.
 - o **(FYI)** 3. PlanCheyenne designates this as Urban Residential within the Urban Service Boundary. This land is anticipated to be developed with urban-style residential development and urban services. Both this proposal and existing development in the surrounding neighborhood meet this expectation.
 - o **(FYI)** 4. Property is currently in the County and no City zoning or land use regulation applies.

REVIEWING AGENCIES WITHOUT COMMENTS:

- Black Hills Corporation (Dustin McKen)
- Board of Public Utilities (Linda Gunter)
- Building (Amanda Barto)
- City Engineer (Amy Allen)
- Community Recreation & Events (Teresa Moore)
- Development Department (Susana Montana)
- Engineering Department – Drainage (Michael Vinson)
- Engineering – General (Mark Escobedo)
- Engineering – GIS (Gary Stogsdill)
- Fire Department (Jim Schamerhorn)
- Laramie County Assessor (Clarice Blanton)
- Laramie County Clerk (Laura Busey)
- Public Works – Traffic (Nathan Beauheim)

REVIEWING AGENCIES NOT RESPONDING:

- CenturyLink (Bob Bates & Kimberly Hessell)
- Charter (Bryan VanKirk)
- Emergency Management Agency
- Laramie County Attorney (Mark Voss)
- Laramie County Dispatch (Glen Crumpton)

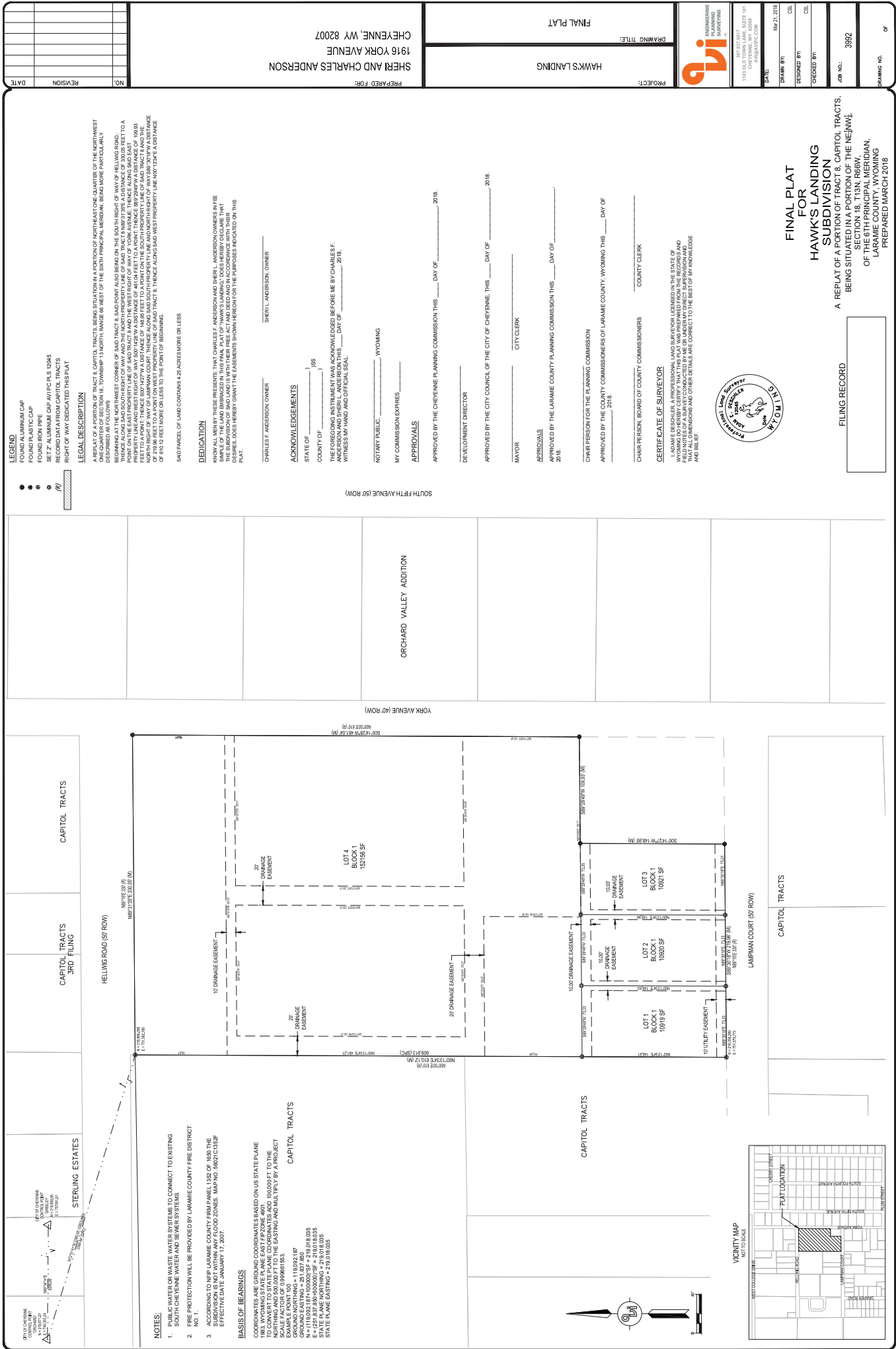
NOTE: As a County Plat, County agencies will have the opportunity to review and comment on this plat through the County's review process.

OTHER COMMENTS RECEIVED:

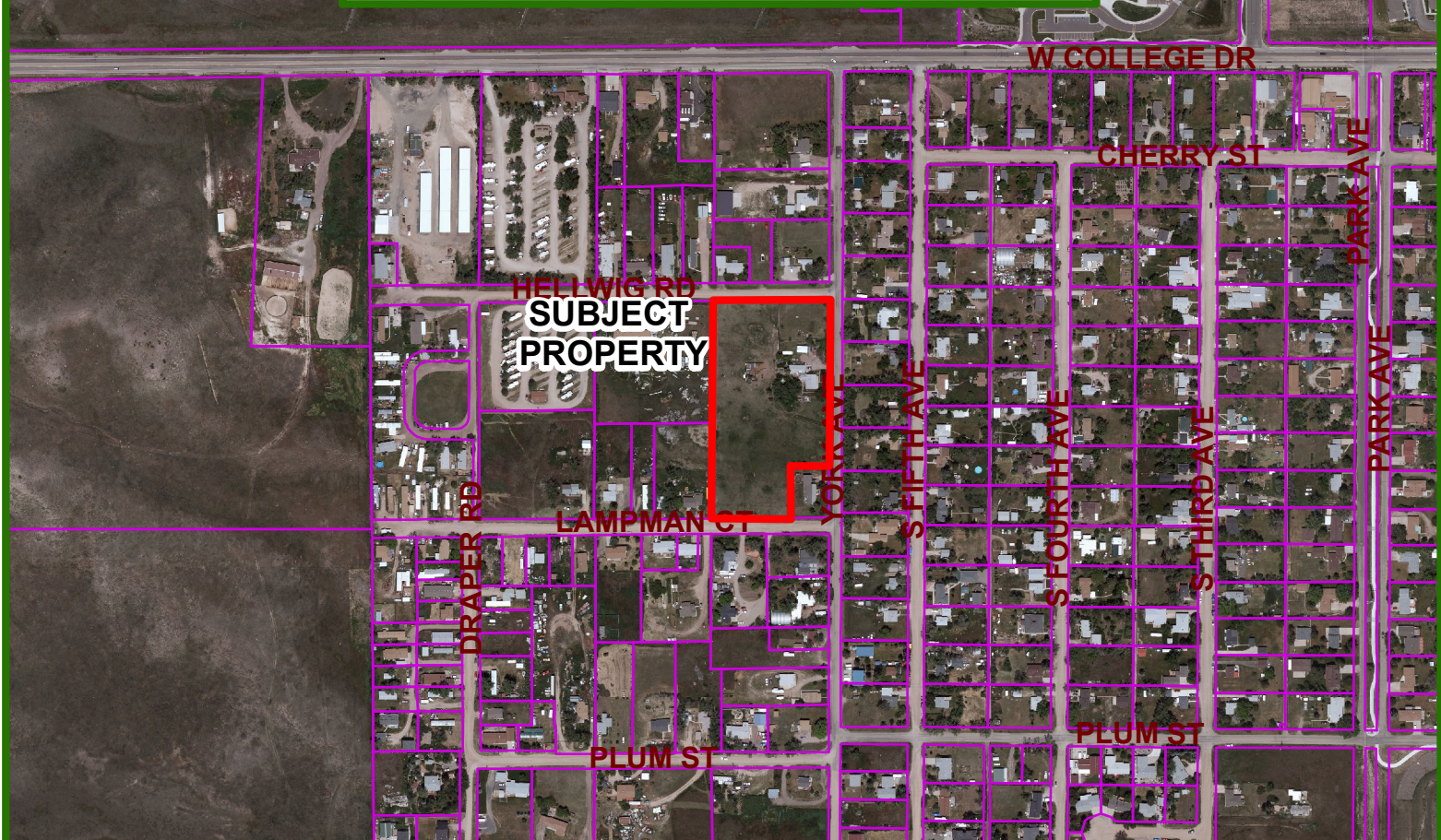
- None

Attachments: Aerial Map – produced by staff
Plat Map(s) – submitted by applicant

cc: Owner, Agent/Applicant, File



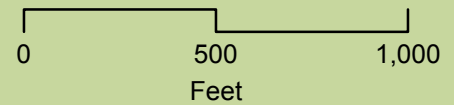
Hawks Landing Subdivision County Final Plat



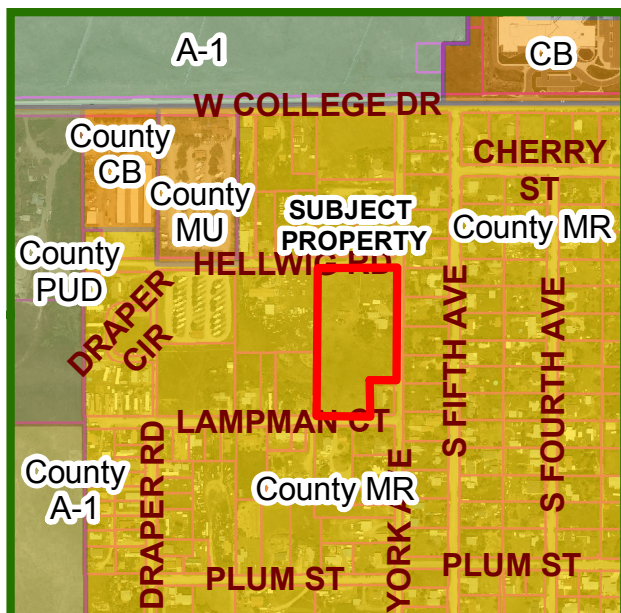
Application Number
County Plat
UDC-18-00067

Applicant: Sheri & Charles Anderson
Agent: Christofer Lovas
AVI, PC

Scale applies to
above map only



Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use

